

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY			
Customer #:			
Trf from:			
Reviewer:	Initials	Date	
Agent:		/	/
Chief:		/	/

To be completed by City/County Clerk

License

Fees Annual Fee: \$ 1050.00

Prorated Fee: \$ _____

Transfer Fee: \$ _____

Publishing Fee: \$ 100.00

Publishing Fee Direct Billed to Applicant: ☐

Local License #: 24 399930

Date filed with clerk: 21 10 122

Advertising Dates: (2 Weeks) 3-17 & 3-24-22

Hearing Date: 3 128 122

License Term: upm / resumed Through 3 1 31 2023
Month Day Year Month Day Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

Applicant: Osterloss Living Trust Dated May 20, 2020

Trade/Business Name (dba): Nagel-Lewman Mansion, LLC

Building to be licensed/Building Address: 222 E. 17th Street
Number & Street

Local Mailing Address: Chayenne WY 80021 Laramie
City State Zip County

Local Mailing Address: 222 E. 17th Street
Number & Street or P.O. Box

Chayenne WY 80021
City State Zip

Local Business Telephone Number: (307) 637-3333 Fax Number: ()

Business E-Mail Address: _____

FILING FOR

☒ NEW LICENSE

☐ TRANSFER OF LOCATION

☐ TRANSFER OWNERSHIP

FORMERLY HELD BY: _____

FILING IN (CHOOSE ONLY ONE)

☐ CITY OF: Chayenne

☐ COUNTY OF: _____

☐ ASSIGNMENT LETTER ATTACHED

FILING AS (CHOOSE ONLY ONE)

☐ INDIVIDUAL

☐ PARTNERSHIP

☐ LP/LLP

☒ LLC

☐ CORPORATION

☐ LTD PARTNERSHIP

☐ ORGANIZATION

☐ OTHER _____

TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)

RETAIL LIQUOR LICENSE

☐ ON-PREMISE ONLY (BAR)

☐ OFF-PREMISE ONLY (PACKAGE STORE)

☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)

☒ RESTAURANT LIQUOR LICENSE

☐ RESORT LIQUOR LICENSE

☐ BAR AND GRILL

LIMITED RETAIL (CLUB)

☐ VETERANS CLUB

☐ FRATERNAL CLUB

☐ GOLF CLUB

☐ SOCIAL CLUB

☐ MICROBREWERY

☐ WINERY

☐ DISTILLERY SATELLITE

☐ WINERY SATELLITE

☐ COUNTY RETAIL/SPECIAL MALT BEVERAGE PERMIT

SPECIAL DESIGNATIONS

☐ CONVENTION FACILITY

☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM

☐ GOLF CLUB

☐ GUEST RANCH

☐ RESORT

To Assist the Liquor Division with scheduling inspections: **OPERATIONAL STATUS**

☒ FULL TIME (e.g. Jan through Dec)

☐ SEASONAL/PART-TIME

☐ NON-OPERATIONAL/PARKED

(specify months of operation)

DAYS OF WEEK (e.g. Mon through Sat)

HOURS OF OPERATION (e.g. 10a - 2a)

from January to December

from Monday to Sunday

from 6:00 AM to 5:00 PM

10:30 PM

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 4

1. BUILDING OWNERSHIP: Does the applicant? W.S. 12-4-103(a)(iii)

- (a) **OWN** the licensed building? ☒ YES (own)
(b) **LEASE** the licensed building? (Lease must be through the term of the liquor license) ☐ YES (lease)

If Yes, please submit a copy of the lease and indicate:

- (i) When the lease expires, located on page _____ paragraph _____ of lease.
(ii) Where the **Sales** provision for alcoholic or malt beverages is located, on page _____ paragraph _____ of lease.
(MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b)

☐ YES ☒ NO

3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
(b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
(c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
(d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b)

☐ YES ☒ NO

If "YES", explain: _____

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a)

☒ YES ☐ NO

6. RESORT LICENSE:

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
(b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
(c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
(d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
(e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

7. MICROBREWERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO

(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT

☐ BAR AND GRILL

☐ WINERY

(b) Do you self distribute your products? W.S. 12-2-201(a)

☐ YES ☐ NO

(Requires wholesale malt beverage license with the Liquor Division)

8. WINERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO

(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT

☐ BAR AND GRILL

☐ MICROBREWERY

9. LIMITED RETAIL (CLUB) LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

13. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

14. If the applicant is a **Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, **and every officer, and every director** must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Steve Osterfoss Trustee Osterfoss Living Trust Dated May 20, 2020	6/3/1965	8632 S. Lewisway Littleton CO 80127	720-495-4890	N/A	100%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

REQUIRED ATTACHMENTS:

- ☒ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102(a)(vi).
- ☒ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☒ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

*Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.*

STATE OF ~~WYOMING~~ Colorado)
COUNTY OF Adams) SS.

Signed and sworn to before me on this 7th day of February, 2022 that the facts alleged in the foregoing instrument are true by the following:

1) <u>[Signature]</u> (Signature)	<u>Steve Osterfoss</u> (Printed Name)	<u>Trustee</u> Title
2) _____ (Signature)	_____ (Printed Name)	_____ Title
3) _____ (Signature)	_____ (Printed Name)	_____ Title
4) _____ (Signature)	_____ (Printed Name)	_____ Title
5) _____ (Signature)	_____ (Printed Name)	_____ Title
6) _____ (Signature)	_____ (Printed Name)	_____ Title

Witness my hand and official seal:



[Signature]
Signature of Notary Public

My commission expires: 7/23/2024

February 8, 2022

Liquor License Application - City of Cheyenne
Cover Letter
Nagel-Warren Mansion LLC

TO: The Honorable Mayor of Cheyenne, Patrick Collins;
and esteemed members of the Cheyenne City Council:
Pete Laybourn
Scott Roybal
Jeff White
Bryan M. Cook
Dr. Mark Rinne
Tom Segrave
Dr. Michelle Aldrich
Richard Johnson
Ken Esquibel

FR: Steve J. Osterfoss, Manager of the Nagel-Warren Mansion, LLC and Trustee of the Osterfoss Living Trust Dated May 20, 2020

I would like to thank each and every one of you for your time and careful consideration of this application.

The Nagel Warren Mansion Bed & Breakfast is located at 222 E. 17th Street, in Cheyenne Wyoming. It is a masterful reconstruction of an era gone by. The Nagel-Warren Mansion is a Historical Landmark in downtown Cheyenne. The property is rich with the history of those individuals who made Cheyenne a western frontier city without equal.

The Nagel-Warren Mansion Bed & Breakfast was operated for over 20 by my father James Osterfoss, introducing his guests to Cheyenne, and providing a unique historical establishment and level of customer care that can rarely be found today. It was his vision to convert a private residence to a historical landmark that the City of Cheyenne would be proud of, that visitors to Cheyenne would cherish, and would be reflective of the spirit of the west that made Cheyenne prosper.

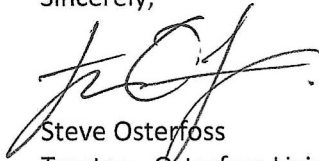
The intention of the Osterfoss Living Trust is to facilitate a transition that would allow this unique property and business to continue well into the future of Cheyenne. The trust is very interested in re-establishing a business model that will attract a long term owner/operator of the mansion that would continue to attract visitors to the Cheyenne area.

This brings us to the application before all of you for consideration. While the sale of alcohol is not a major or primary function of the Nagel Warren Bed and Breakfast, it is a necessity. The sale of alcohol

will allow the Bed and Breakfast to promote special functions and activities. Such special events would include; Weddings, Event Dinners, Social Club Meetings, Political Meetings, and other special events. This license would also allow the guests of Nagel-Warren Mansion to enjoy alcoholic beverages on site while sharing stories of the day with other guests staying at the Mansion.

The Nagel-Warren Mansion previously held a Liquor License for many years, and to my knowledge without any incident at all. It is my hope that the council will give full and careful consideration to this application, provide its approval, and allow the Nagel-Warren Mansion to continue to provide an exceptional historical western experience to the visitors of Cheyenne.

Sincerely,

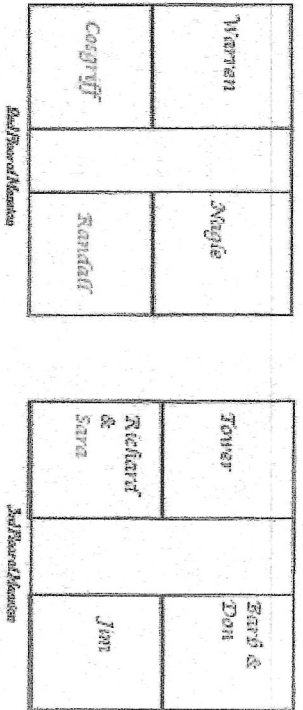
A handwritten signature in black ink, appearing to read 'Steve Osterfoss', with a stylized flourish at the end.

Steve Osterfoss
Trustee - Osterfoss Living Trust Dated May 20, 2020

Liquor License Application - City of Cheyenne
Property Lease Agreement
Nagel-Warren Mansion LLC

The Nagel Warren Mansion Bed & Breakfast is located at 222 East 17th Street in Cheyenne Wyoming.
There is no property lease agreement in place, as the property is wholly owned by the Osterfoss Living
Trust Dated May 20, 2020.

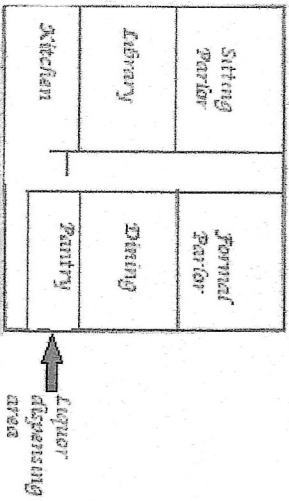
17th Street
Nagle Warren Mansion Bed and Breakfast



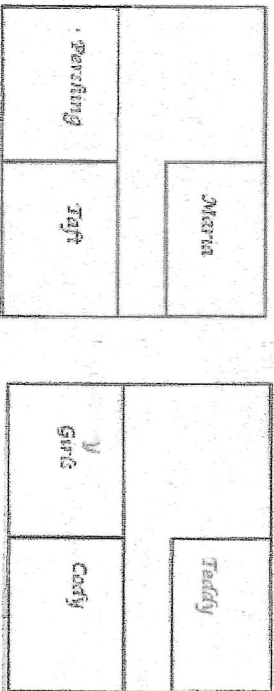
1st Floor of Mansion

2nd Floor of Mansion

House
Avenue



3rd Floor of Mansion
Carnade House Rooms



4th Floor of Mansion

Nagle Warren Bed and Breakfast

The liquor dispensing area is located in the Butler Pantry (prep service area) between the dining room and kitchen. And is physically located in the rear 2/3rd of the mansion (please refer to map enclosed). The room is equipped with locked cabinets, refer, and glass storage. It has been used for over 20 years as the liquor dispensing point and is set for this purpose.

Issued by:

**WYOMING DEPARTMENT OF AGRICULTURE
CONSUMER HEALTH SERVICES
2219 CAREY AVE
CHEYENNE, WY 82002**

EQUAL OPPORTUNITY IN EMPLOYMENT AND SERVICES

Retail Food

ACCOUNT # 11312

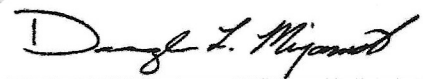
Whereas this party has made application for the licenses listed below in the State of Wyoming according to the law and agrees to comply with all laws, rules and regulations thereto, including the payment of all required fees, there is hereby issued to the applicant this license. This license is not transferable and, unless revoked, shall expire on the date indicated below.

Issued to:

**NAGLE WARREN MANSION
222 E 17TH
CHEYENNE, WY 82001**

**EXPIRATION DATE:
12/28/2022**

**OSTER FOSS TRUST
OSTER FOSS TRUST
222 E 17TH
CHEYENNE, WY 82001**



Director of Dept. of Ag

**THIS LICENSE MUST BE CURRENT
AND POSTED CONSPICUOUSLY
AT THE PHYSICAL LOCATION**

TIPS TRAINING PROGRAM

The staff of the Nagle Warren Bed and Breakfast will participate in the Group Training Tip passport program for certification.



THE DUCHESS OF CHEYENNE

WELCOME TO DINNER

The Nagle Warren Mansion was built by Erasmus Nagle in 1888. It is one of the few remaining fine homes built during the 1880s, when Cheyenne was the richest city, of its size, in the world.

Chef Jas Barbe prepares his unique European fusion style cuisine featuring the freshest organic produce and aged proteins

First Course: (Select one):

SASHIMI OF A SALMON GRAVLAX, ORIENTAL-STYLE
Salad of Nashi Pear and Cucumber with Sesame Seeds

AUTUMN SALAD OF FOIE GRAS AND CÈPE-MUSHROOMS
Beetroot, Artichoke, Walnuts and Seasonal Truffle

Second Course:

SURPRISE CHESTNUT OF DUCK FOIE GRAS WITH VANILLA
In a Jelly of Sauternes Wine, Cèpe-Mushrooms and Ham of Duck

Entree Course (Select one)

FILLET OF SALMON GLAZED-AND-ROASTED ON THE COALS
Lobster « Chao Mian » and Baby Vegetables, Teriyaki Sauce

CAPPUCCINO OF A CREAMY LOBSTER BISQUE
AND CAULIFLOWER WITH CURRY
Sea Scallops and Romanesco Broccoli

BLANQUETTE OF VEAL CHEAK « NANTUA »
Crayfish, Vegetables « Al Dente » and Rice with Chanterelle Mushrooms

FILLET OF BEEF AND FOIE GRAS « ESCALOPINE » WITH GRAPES
Pan-sauteed Wild Mushrooms and Darphin Potatoes

Dessert

CARAVANE » OF OUR TARTS, DESSERTS AND PASTRIES
Delicacies and Marshmallows

Holiday Tea Menu

1:40 to 3:55 Fridays & Saturdays by Reservation

Cream Currant Scones with Lemon Curd Spread

Cheddar Bacon Scone with spread

Raspberry Almond Tea Bread with Honey Butter

Cranberry Orange Bread with Marmalade

Sunflower Seed Brittle

Peppermint Crunch Bark

Orange Almond Biscotti

Gingerbread Cookie

Pistachio White Chocolate Cherry Truffle

Coffee Truffle

Sugar Plums

Turkey with Pear Chutney Tea Sandwich

Egg Salad Tea Sandwich

Smoked Trout & Roasted Red Pepper Sandwich

Ham Salad Sandwich

Vanilla Custard Tartlet

Chocolate & Salted Caramel Tartlet

Neggapolluzza

Cappuccino Cheesecake

Lemon Slices

Pickled Mustard Seed

Honey Butter

Nagle Warren Mansion Special Tea Blend

Beverage options available: herbal teas, wine, champagne